

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS

DIAMOND CARTER

Plaintiff(s),

-against-

THE CITY OF NEW YORK; et al.

Defendant(s).

Index No.

Summons

Date Index No. Purchased: October 24, 2022

To the above named Defendant(s)

THE CITY OF NEW YORK; AND JOHN AND JANE DOES 1-4.

You are hereby summoned to answer the complaint in this action and to serve a copy of your answer, or, if the complaint is not served with this summons, to serve a notice of appearance, on the Plaintiff's attorney within 20 days after the service of this summons, exclusive of the day of service (or within 30 days after the service is complete if this summons is not personally delivered to you within the State of New York); and in case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the complaint.

The basis of venue is a substantial part of the events & omissions giving rise to the claims took place in Kings which is , because Plaintiff's arrest and assault took place in this county, proper under CPLR 503(a).

Dated: Ridgewood (Queens), NY

October 24, 2022

Cohen&Green P.L.L.C.

by /s/ Remy Green

Remy Green

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SUPREME COURT OF THE STATE OF NEW YORK
KINGS COUNTY

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Case No.:

DIAMOND CARTER,

Plaintiff,

COMPLAINT

-against-

**PLAINTIFF DEMANDS
A TRIAL BY JURY**

THE CITY OF NEW YORK; AND JOHN AND JANE DOES
1-4.

Defendants.

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Plaintiff DIAMOND CARTER, by their attorneys, COHEN&GREEN P.L.L.C., hereby
complains of Defendants as follows:

PARTIES, VENUE AND JURISDICTION

1. At all times mentioned herein, Plaintiff DIAMOND CARTER (“Mx. Carter”,
“they/them”, or “Plaintiff”) was a resident of Kings County in the City and State of New York.

2. At all relevant times mentioned herein, Defendant City of New York (“New York
City”) was and is a municipal corporation duly organized and existing under and by virtue of the
laws of the State of New York and acts by and through its agencies, employees and agents,
including, but not limited to, the New York City Police Department (“NYPD”), and their
employees.

3. Defendants NYPD officers John Does 1 and 2 were men and officers with the
NYPD assigned to the 77th Precinct. John Doe 1 appeared to be Hispanic, with light skin, wearing

an NYPD uniform with a blue shirt. John Doe 2 appeared to be white and wearing an NYPD uniform with a blue shirt.

4. NYPD officer Jane Doe 3 appeared to be a woman and was wearing an NYPD uniform. Jane Doe 3 was at all relevant times assigned to the 77th Precinct.

5. NYPD member John Doe 4 was a man wearing an NYPD uniform with a white shirt, assigned to the 77th Precinct.

6. John and Jane Does 1-4 are collectively referred to herein as the “Doe Defendants” and are sued herein in their official and individual capacities.

7. The Defendants are NYPD members who unlawfully used excessive force, arrested, and/or detained Plaintiff and others similarly situated in violation of their constitutional rights.

8. At all times hereinafter mentioned, the Defendants were employed by the City of New York as members of the NYPD. Some of their true names, as noted throughout this Complaint, are currently unknown to the Plaintiff.

9. At all times hereinafter mentioned, Defendants, either personally or through their employees, were acting under color of state law and/or in compliance with the official rules, regulations, laws, statutes, customs, usages and/or practices of the State or City of New York.

10. Each and all of the acts and omissions of the Defendants alleged herein occurred while said Defendants were acting within the scope of their employment by the Defendant City.

11. Defendants were duly appointed and acting officers, servants, employees, and agents of Defendant City who were acting for, and on behalf of, and with the power and authority vested in them by Defendant City, and were otherwise performing and engaging in conduct incidental to the performance of their lawful functions in the course of their duties.

12. Defendants were each and all responsible, in whole and/or in part, for the planning for and/or creation, promulgation, implementation, and/or enforcement of the unconstitutional policies, practices and/or customs complained of herein, and/or condoned, acquiesced in, adopted, and/or approved of the same, through their acts and/or failures to act, as set forth more fully below.

13. At all times relevant herein, as set forth more fully below, Defendants' actions and/or failures to act were malicious, intentional, knowing, and/or with a deliberate indifference to or a reckless regard for the natural and probable consequences of their acts and/or omissions.

14. Although they were aware of the conduct, present for it, and knew or should have known it was unconstitutional, at no time did any of the Defendants, or any other member of the NYPD, take any steps to intervene in, prevent, or otherwise limit the unconstitutional conduct engaged in by their fellow officers.

15. Each individual Defendant is sued in her or his individual and official capacities.

16. Venue is proper in the County of Kings, where the Plaintiff and Defendant City of New York reside, and where the actions complained of herein occurred.

17. Plaintiff has initiated this action within one year and ninety days of the accrual of Plaintiff's claims.

18. Plaintiff filed a notice of claim along with an order to show cause deeming their notice of claim timely filed, within one year and ninety days of this incident.

STATEMENT OF FACTS

19. This claim arose in the early morning hours of on July 24, 2021 and thereafter, in Kings County, City, and State of New York, when multiple New York City Police Department ("NYPD") members, *inter alia*, unlawfully assaulted, seized, battered, and arrested Plaintiff

Diamond Carter (“Plaintiff”), employing unreasonable and excessive force, in violation of, and retaliation for the exercise of, Plaintiff’s rights.

20. All of the exact names and identities of the officers responsible are not currently known, except for the following:

21. NYPD Officer John Doe 1 appeared to be a Hispanic man with light skin wearing a blue NYPD uniform shirt.

22. NYPD Officer John Doe 2 appeared to be a white man wearing a blue NYPD uniform shirt.

23. NYPD Officer Jane Doe 3 appeared to be a woman in NYPD uniform.

24. At this time, John Does 1 and 2 grabbed Plaintiff and tackled them to the ground. John Does 1 and 2 then picked up Plaintiff and slammed them into a police van. John Does 1 and 2 then applied excessively tight handcuffs to Plaintiff’s wrists and refused to loosen them even after Plaintiff informed John Does 1 and 2 that the handcuffs were too tight.

25. The members of the NYPD then transported Plaintiff to the stationhouse of a local area precinct believed to be the 77th Precinct. At the precinct, Plaintiff complained of the excessively tight handcuffs including to NYPD member John Doe 4, who appeared to be a man wearing a white NYPD uniform shirt.

26. In response to Plaintiff’s complaints of excessively tight handcuffs, NYPD members handcuffed Plaintiff to bench.

27. Plaintiff was handcuffed to that bench for 17 hours.

28. The handcuffs that one or more of the Defendant NYPD members had applied to Plaintiff’s wrists were so tight that they caused significant pain and lasting bruising to Plaintiff’s wrists.

29. No NYPD members responded to Plaintiff's requests to loosen them.
30. During Plaintiff's time in custody, no NYPD officer offered Plaintiff a phone call.
31. No one could locate or contact Plaintiff while Plaintiff was in custody.
32. Plaintiff was unlawfully deprived of meaningful access to basic necessities for an extended period of time—and subjected to filthy and unsanitary conditions of confinement—while in NYPD custody.
33. Plaintiff was then summarily released from the precinct without being charged, and without any summons or desk appearance ticket.
34. Plaintiff was not involved in any suspicious or illegal activity, and there was no legal basis for the Defendants to arrest Plaintiff, nor to use any force against Plaintiff, much less the force actually employed.

FIRST CLAIM FOR RELIEF

Excessive Force

Pursuant to 42 U.S.C. § 1983 for Defendants' Violations of Plaintiff's Rights Under the Fourth and Fourteenth Amendments to the United States Constitution

35. Plaintiff incorporates by reference the allegations set forth in all preceding and following paragraphs as if fully set forth herein.
36. Defendants' use of force against Plaintiff was unjustified and objectively unreasonable, taking into consideration the facts and circumstances that confronted Defendants.
37. As a result of Defendants' acts and omissions, Defendants deprived Plaintiff of their federal, state, and/or other legal rights; caused Plaintiff bodily injury, pain, suffering, psychological and/or emotional injury, and/or humiliation; caused Plaintiff to expend costs and expenses; and/or otherwise damaged and injured Plaintiff.

38. Defendants' unlawful conduct was willful, malicious, oppressive, and/or reckless, and was of such a nature that punitive damages should be imposed against them.

SECOND CLAIM FOR RELIEF

False Arrest/Unlawful Seizure

Pursuant to 42 U.S.C. § 1983 for Defendants' Violations of Plaintiff's Rights Protected Under the Fourth and Fourteenth Amendments to the United States Constitution

39. Plaintiff incorporates by reference the allegations set forth in all preceding and following paragraphs as if fully set forth herein.

40. Defendants did not have probable cause to seize, detain, or arrest Plaintiff.

41. Defendants seized Plaintiff without a written judicial warrant authorizing them to do so.

42. Defendants' seizure of Plaintiff was without privilege or lawful justification.

43. Plaintiff did not consent and were conscious of the confinement by Defendants.

44. As a result of Defendants' acts and omissions, Defendants deprived Plaintiff of their federal, state, and/or other legal rights; caused Plaintiff bodily injury, pain, suffering, psychological and/or emotional injury, and/or humiliation; caused Plaintiff to expend costs and expenses; and/or otherwise damaged and injured Plaintiff.

45. Defendants' unlawful conduct was willful, malicious, oppressive, and/or reckless, and was of such a nature that punitive damages should be imposed against them.

THIRD CLAIM FOR RELIEF

Due Process

Pursuant to 42 U.S.C. § 1983 for Defendants' Violations of Plaintiff's Rights Protected Under the Fifth and Fourteenth Amendments to the United States Constitution

46. Plaintiff incorporates by reference the allegations set forth in all preceding and following paragraphs as if fully set forth herein.

47. As described above, Defendants enforced offenses in a manner that rendered them constitutionally void for vagueness and/or overbroad, such that their enforcement against Plaintiff violated their Due Process rights, in that Defendants' enforcement in connection with those offenses failed to provide and/or reflected the absence of adequately clear standards to guide police officials' extremely broad discretion to arrest anyone at their whim, based on *ad hoc* determinations, often without fair warning.

48. Additionally, as discussed elsewhere herein, Defendant City designed and/or implemented policies and practices pursuant to which those Defendants who ordered, effected, and otherwise participated in seizing and/or retaining Plaintiff's property and/or detaining Plaintiff in the conditions as described subjected Plaintiff to the violations of their Due Process rights described elsewhere herein.

49. As a result of Defendants' acts and omissions, Defendants deprived Plaintiff of their federal, state, and/or other legal rights; caused Plaintiff bodily injury, pain, suffering, psychological and/or emotional injury, and/or humiliation; caused Plaintiff to expend costs and expenses; and/or otherwise damaged and injured Plaintiff.

50. Defendants' unlawful conduct was willful, malicious, oppressive, and/or reckless, and was of such a nature that punitive damages should be imposed against them.

FOURTH CLAIM FOR RELIEF

Deprivation of Fair Trial Rights

Pursuant to 42 U.S.C. § 1983 for Defendants' Violations of Plaintiff's Rights Protected

Under the Fifth, Sixth, and Fourteenth Amendments to the United States Constitution

51. Plaintiff incorporates by reference the allegations set forth in all preceding and subsequent paragraphs as if fully set forth herein.

52. Defendants fabricated evidence of a material nature, likely to influence a jury's decision, intentionally forwarded that evidence to prosecutors, as a result of which Plaintiff suffered liberty deprivations and other injuries.

53. As a result of Defendants' acts and omissions, Defendants deprived Plaintiff of their federal, state, and/or other legal rights; caused Plaintiff bodily injury, pain, suffering, psychological and/or emotional injury, and/or humiliation; caused Plaintiffs to expend costs and expenses; and/or otherwise damaged and injured Plaintiff.

54. Defendants' unlawful conduct was willful, malicious, oppressive, and/or reckless, and was of such a nature that punitive damages should be imposed against them.

FIFTH CLAIM FOR RELIEF

Violations of New York State Law *Pursuant to the New York State Constitution and New York State Law*

55. Plaintiff incorporates by reference the allegations set forth in all preceding and following paragraphs as if fully set forth herein.

Respondeat Superior Liability

56. The conduct of the police officials alleged herein occurred while they were on duty and/or in and during the course and scope of their duties and functions as police officials, and/or while they were acting as agents and employees of Defendant City, clothed with and/or invoking state power and/or authority, and, as a result, Defendant City is liable to the Plaintiff pursuant to the state common law doctrine of *respondeat superior*.

Assault

57. Defendants committed assault within the meaning of New York common law against Plaintiff by intentionally placing Plaintiff in fear of imminent harmful or offensive contact.

Battery

58. Defendants committed battery within the meaning of New York common law against Plaintiff by intentionally physically contacting Plaintiff without Plaintiff's consent.

False Arrest and Excessive Detention

59. Defendants deliberately detained Plaintiff for excessive and unreasonably prolonged periods of time.

Excessive Force

60. Defendants deliberately engaged in the excessive use of force against Plaintiff, causing them pain and suffering.

Violations of the New York State Constitution

61. Defendants, acting under color of law, violated Plaintiff's rights pursuant to Article I, §§ 6, 8, 9, 11, and 12 of the New York State Constitution.

62. A damages remedy here is necessary to effectuate the purposes of Article I, §§ 6, 8, 9, 11, and 12 of the New York State Constitution, and appropriate to ensure full realizations of Plaintiff's rights under those sections.

63. As a result of Defendants' acts and omissions, Defendants deprived Plaintiff of their federal, state, and/or other legal rights; caused Plaintiff bodily injury, pain, suffering, psychological and/or emotional injury, and/or humiliation; caused Plaintiff to expend costs and expenses; and/or otherwise damaged and injured Plaintiff.

64. Defendants' unlawful conduct was willful, malicious, oppressive, and/or reckless, and was of such a nature that punitive damages should be imposed against them.

Intentional and Negligent Infliction of Emotional Distress

65. By the actions described above, Defendants engaged in extreme and outrageous conduct, which intentionally and/or negligently caused severe emotional distress to Plaintiff.

66. The acts and conduct of the Defendants were the direct and proximate cause of injury and damage to the Plaintiff and violated their statutory and common law rights as guaranteed by the laws and Constitution of the State of New York.

67. As a result of the foregoing, Plaintiff was deprived of their liberty, suffered specific and serious bodily injury, pain and suffering, psychological and emotional injury, great humiliation, costs and expenses, and was otherwise damaged and injured.

Negligent Training and Supervision

68. Upon information and belief, Defendant City supervised and trained the police officials described above.

69. The unlawful conduct of the Defendants was willful, malicious, oppressive, and/or reckless, and was of such a nature that punitive damages should be imposed against them.

DEMAND FOR A JURY TRIAL

Plaintiff hereby demands a jury trial of all issues capable of being determined by a jury.

DEMAND FOR JUDGMENT

WHEREFORE, Plaintiff demands judgment against the individual Defendants and the City of New York as follows:

- i. Actual and punitive damages against the individual Defendants in an amount to be

- determined at trial;
- ii. Actual damages in an amount to be determined at trial against the City of New York;
 - iii. Statutory attorney's fees, disbursements, and costs of the action pursuant to, *inter alia*, 42 U.S.C. §1988, New York Civil Rights Law § 79-P(3)(d), and New York common law; and
 - iv. Such other relief as the Court deems just and proper.

Dated: New York, New York
October 24, 2022

COHEN&GREEN P.L.L.C.

By: /s/
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Jessica Massimi

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